

Smt. Veena Solanki vs The State on 23 May, 2014

IN THE COURT OF SHRI SANJEEV KUMAR SINGH :
ADMINISTRATIVE CIVIL JUDGE- CUM- ADDITIONAL
RENT CONTROLLER (CENTRAL) : DELHI

Petition No. : 199/2003
Unique ID No : 02401C0195462003

In the matter of:-

1. Smt. Veena Solanki,
W/o. Late Sh. Sukendra Pal Singh Solanki,
 2. Miss Eti Solanki,
D/o. Late Sh. Sukendra Pal Singh Solanki,
- Both R/o. C-7, IInd Floor, Usha Niketan,
Safdarjung Development Area,
New Delhi.

....Petitioners.

Versus

The State.

.....Respondent.

Date of Institution : 11.03.2003
Date of order when reserved : 23.05.2014
Date of order when announced : 23.05.2014

J U D G M E N T :

1. The present succession petition has been filed by the Petitioners namely Smt. Veena Solanki for herself and on behalf of her daughter Miss Eti Solanki, being her natural guardian/mother, for the grant of Succession Certificate in their favour qua the debts and securities left behind by deceased namely Sh. Sukhendra Pal Singh Solanki, who had expired on 11.06.2002 at Almora, UP (now Uttrakhand).

2. After filing of the petition, notice was given to the general public by way of publication in the newspaper 'The Times of India' dated 13.01.2014, but none has appeared from general public to oppose or contest the present petition.

3. Initially, a petition bearing No. 688/2002 titled as Smt. Karuna Solanki Vs. The State was filed by Smt. Karuna Solanki qua the debts and securities of deceased S.P.Solanki. Vide order dated 12.04.2004, the said petition was dismissed as it was withdrawn by the petitioner Smt. Karuna Solanki.

4. Respondent Smt. Karuna Solanki for herself and on behalf of her minor sons namely Master Surya Pratap Singh and Master Shri Dev Singh had filed her reply/objections. It is contented that by

the respondents that the deceased Sh. Sukhender Pal Singh Solanki had two wives and had children out of both the wedlocks. Respondent Smt. Karuna Singh is widow of deceased Sh. Sukhender Pal Singh Solanki and two sons were born out of her wedlock with the deceased Sh. Sukhender Pal Singh Solanki. The Tehsildar having jurisdiction over the native place of the deceased Sh. Sukhender Pal Singh Solanki, after conducting inquiry for the purposes of mutation of ancestral land etc. of the deceased, had passed an Order declaring the sons born out of her wedlock with Sh. Sukhender Pal Singh Solanki namely Master Surya Pratap Singh and Master Sh. Dev Singh as the descendants of the deceased Sh. Sukhender Pal Singh Solanki. Sukhender Pal Singh Solanki died in an accident on 11.06.2002. She had denied that Sh. Sukhender Pal Singh was residing at C-7, 2nd Floor, Usha Niketan, SDA, New Delhi or that the petitioner was his only wife. The petitioner, immediately prior to his death, was residing with her, at A-7, 2nd Floor, Shivalik, New Delhi-110017. However, it is submitted that Shri Sukhender Pal Singh Solanki did not nominate any one to receive the terminal benefits and the office of the Commissioner of Customs had sent a letter dated 26.12.2002 to her requiring her to obtain a Succession Certificate. The petitioner concealed the fact that the two sons of Shri Sukhender Pal Singh Solanki namely Master Surya Pratap Singh and Master Shri Dev Singh, under the care of the objector, are the legal heirs of the deceased entitled to a succession certificate. The petitioner denied the claim of the Objector as wife of the deceased or as mother of the two sons of deceased namely Master Surya Pratap Singh and Master Shri Dev Singh, stating that the claim is wrong, baseless and an after thought.

5. In reply to the objections filed by Smt. Karuna Solanki, it is stated on behalf of the petitioners that petitioner no. 1 is the sole wife of Late Sh. S.P.S. Solanki and petitioner no. 2 is his sole daughter. There is no other wife or son or daughter of the deceased Sh. Sukender Pal Singh. Objector Smt. Karuna Solanki has filed objections only to extort money from the petitioners. It is denied that late Sh. Sukhender Pal Singh did not nominate anyone to receive terminal benefits and the office of the Commissioner of Customs had sent a letter dated 26.12.2002 to the objector. Admittedly, deceased was working under Directorate of Revenue Intelligence and was registered under the Central Health Scheme (CGHS) vide card No. 200292 dated 23.09.1982. It is matter of record that only name of petitioner no. 1 has been mentioned as wife which clearly establishes that she is the only wife of Late Sh. Sukhender Pal Singh Solanki.

6. In order to substantiate her case, the petitioner no. 1 herself deposed as PW-1. She deposed that late Sh. Sukhendra Pal Singh Solanki s/o Late Jorawar Singh Solanki was her husband and he died on 11.06.2002 while driving Maruti Car No. DL-3CR-0907 at National Highway No.24 within the jurisdiction of police station Rajabpur, Amroah J.P. Nagar, U.P. At the time of his death, she and her husband Sh. Sukhendra Pal Singh Solanki were going to drop their daughter Ms. Eti Solanki in her school at Ashoka Hall Girls Resi. S.C.H. Majkhali, Almora. She sustained serious injuries. Subsequently, late Sh. Sukhendra Pal Singh Solanki was cremated in his native place village Laduki Hasanpur, Distt. Bullandshar (UP). The death certificate of Late Sh. Sukhendra Pal Singh Solanki is Ex. PW-1/1. The deceased Sukhendra Pal Singh Solanki died leaving behind herself, her daughter Eti Solanki and Smt. Premwati (Mother). The deceased Sukhendra Pal Singh Solanki was residing at premises No. C-7, IIInd Floor, Usha Niketan, Safdarjung Development Area, New Delhi alongwith his wife i.e. herself and daughter Eti Solanki. The letter of condolence dated 27.06.2002 sent by the office of Commissioner of Customs, New Customs House, IGI Airport is Ex. PW-1/2. The deceased

Sukhendra Pal Singh Solanki was Hindu by religion and was married with her on 28.06.1979 according to Hindu rites and ceremonies. Original Mangal Parinay is Ex. PW□/3. The petitioner no. 2 is the daughter of the deceased, who was born on 30.04.1986. Original admission card issued by Indian School Certificate Examination showing her date of birth and her birth certificate are Ex. PW□/4 to Ex. PW□/5. The deceased was working in the office of Commissioner of Customs, under Directorate of Revenue Intelligence as Inspector and was registered under the Central Govt. Health Scheme (CGHS) vide card No. 200292 dated 23.09.1982. In the list, her name, her daughter Baby Rupal's (now deceased), J.S. Solanki (Late Father) and Mother Premwati's names had been mentioned. The copy of the CGHS card is Ex. PW□/6. The deceased Sukhendra Pal Singh did not execute any Will during his life time. The claim of Smt. Karuna Singh Solanki, allegedly claiming herself to be wife of deceased, is false. Deceased never had any wife named Karuna Singh Solanki nor he had any sons named as Master Surya Pratap Singh Solanki and Shree Dev Singh Solanki.

7 During her cross examination, PW□ has stated she did not know the objector who was present in the court. She had been seeing the objector for 8 years in the court. She has never met the objector outside the court. The deceased Sh. S.P.S. Solanki had not left behind any properties other than the properties for which the succession petition has been filed. She did not have a ration card. Her marriage with the deceased Sh. S.P.S. Solanki was solemnized in Bhind (MP). At the time of her marriage, her husband was in service and he was posted at Mumbai. Her mother in law Smt. Premwati Solanki was residing in the village Laduki at the time of her marriage and has been residing in the Village Laduki only, till date. Her husband Late Sh. SPS Solanki had three brothers and one sister. She and her husband came from Mumbai to Delhi in the year 1982. Since then, her husband remained posted at Delhi. She did not know as to whether her mother in law availed the benefits of CGHS Card Ex. PW□/6 or not. She is residing at her current address since 1985. She did not know any of the family members of Karuna Singh. She never had quarrels with her husband. She had made a complaint to the police against her husband. She had made a complaint against the brother of Karuna Singh, whose name is Kailash Singh. Her husband was again posted at Mumbai in 1994. She went alongwith her husband. The posting lasted upto 1996. During that time, her children were studying at Delhi. In June, 1994, both the children were admitted to the schools at Mumbai, but she came to Delhi. Her second daughter namely Eti Solanki was born in the year 1986 at Delhi. She did not know that FIR No. 71/97 was registered at PS Hauz Khas against her on the complaint of her husband. She has denied that her husband and her mother in law were angry with her because she got sterilization/tubectomy done after giving birth to second daughter. She denied that the third person from the left side in Ex. PW□/D□2 is herself. She did not know as to whether her name has been mentioned in the parivar register Ex. PW□/D□3 in the village Laduki or not. She did not know as to whether the name of objector and her two sons was entered in the parivar register or not. She admitted her signatures at point A to D in the Memorandum of Understanding dated 10th day of April, 2004, Ex. PW□/D□4. She admitted that the Memorandum of Understanding was executed between her and Karuna Singh. She also admitted that Smt. Prem Wati died at the residence of Smt. Karuna Singh Solanki.

8 On the other hand, in order to substantiate their claim, respondents examined three witnesses. RW□ Karuna Singh deposed that Sh. Sukhender Pal Singh Solanki had solemnized marriage with her on the day of Chhoti Diwali in the year 1994 in presence of his parents, her parents, other

relatives and friends at G□2/6, First Floor, Malviya Nagar, New Delhi. Sukhender Pal Singh used to reside with him as her husband at Bombay where he was posted as he was working in the Indian Customs Department. Copy of order dated 09.07.2003 passed by the court of the Tehsildar, Khurja, Distt. Bulandshar, U.P. whereby the ancestral land of Sh. SPS Solanki was mutated in her favour of two sons namely Surya Pratap Singh and Sh. Dev Singh is Ex. RW□/2. After giving birth to a male child in the year 1996, Sh. SPS Solanki was also transferred to Delhi and thereafter, SPS Solanki and his mother started living in her parent's house at G□2/6, First Floor, Malviya Nagar, New Delhi. Ex. RW□/3 is the birth certificate of her elder son. Thereafter, Sh. SPS Solanki employed one Hanuman @ Sunil S/o. Joginder, who used to take care of her son and other outdoor household jobs. Ex. RW□1/4 is the certificate of her son Surya Pratap Singh, which is issued by Laxman Public School. Ex. RW□/5 is the Baby Discharge slip issued by Mayfair Nursing Home, Hauz Khas, New Delhi regarding her second son with Sh. SPS Solanki. Ex. PW□/6 is birth certificate of her younger son. Ex. RW□/7 is the Parivar Register of deceased wherein the family details of deceased SPS Solanki are mentioned as Karuna Devi (Wife), Surya Pratap Solanki and Sh. Dev Solanki (Sons), Smt. Veena Devi (Wife) and Babli (Daughter). Ex. RW□/8 is the death certificate of Smt. Prem Wati, the mother of the deceased. Ex. RW□/9 is the Fixed Deposit Receipt issued by Canara Bank dated 26.09.2003 to Smt. Prem Wati at her address A□7, 2nd Floor, Shivalik, New Delhi. 9 During her cross examination, RW□ admitted that she has not placed any document to show that deceased SPS Solanki was a divorcee.

10 RW□2 Hanuman @Sunil Kumar deposed that he has been in service of Smt. Karuna Singh Solanki since about 1998. When he joined the service, there was only one son namely Surya Pratap Singh @ Kakku, about 2 years old and the other son was born in the year 2001. Sh. SPS Solanki and his mother namely Smt. Prem Wati were residing with Smt. Karuna Singh at A□7, 2nd Floor, Shivalik, New Delhi. Surya Pratap Singh @ Kakku performed all the last rites of Sh. SPS Solanki and Smt. Karuna Singh Solanki performed all those rites which are performed by the wife of a deceased.

11. RW□3 Satish Kumar deposed that he is the cousin brother of Smt. Karuna Singh. He had been visiting her house since 1996. Firstly, he went to the house of Smt. Karuna Singh on the occasion of the Naamkaran Sanskar of her elder son in the month of June, 1996. Whenever he used to visit the house of Karuna Solanki, he saw that Sh. SPS Solanki and his mother namely Smt. Prem Wati were living with Smt. Karuna Singh.

12. During his cross examination, RW□3 stated that at the time of accident, the daughter, first wife (Pahliwali wife) of SPS Solanki were occupants of the car. The first wife of deceased is alive.

13. Both the parties had filed written arguments in support of their contentions.

14. It is contended by Ld. counsel for the petitioners that the respondent Smt. Karuna Singh Solanki has miserably failed to establish that any marriage had taken place between her and the deceased. In order to establish marriage, the ceremonies prescribed under section 7 of the Hindu Marriage Act are required to be proved. No evidence has been adduced by the respondents to establish performance of any ceremonies of purported marriage. The respondents Master Surya Pratap Singh and Master Shree Dev Singh are also do not entitle to benefit under Section 16 of the Hindu

Marriage Act. Reliance is placed upon judgment delivered by Hon'ble High Court of Delhi in the case of Sudershan Karir Vs. State and others, AIR 1988 Delhi 368. Therefore, the objections are liable to be dismissed and a succession certificate deserves to be issued in favour of the petitioners alone.

15. On the other hand, it is emphatically contended on behalf of the respondents that even petitioner no. 1 has not adduced any evidence to establish performance of ceremonies prescribed Under section 7 of the Hindu Marriage Act at the time of her purported marriage with the deceased. There is ample evidence on record to establish that respondent no. 1 Karuna Singh Solanki was married with deceased and respondents no. 2 and 3 were born out of the wedlock between respondent no. 1 and the deceased. The respondents have filed copy of application under Order 1 Rule 10, filed by Smt. Premwati, mother of deceased, Ex. RW□/1, order dated 09.07.2003 passed by the court of Tehsildar in mutation proceedings, Ex. RW□/2, Parivar register, Ex. RW□/7, application and declaration form dated 06.05.2002, Mark A, letter issued by M/s. United India Insurance Co. Ltd. dated 09.08.2002 wherein respondent no. 1 was acknowledged as a nominee, Mark B. Therefore, respondents no. 2 and 3 are also entitled to equal shares in the debts and securities of the deceased. Reliance is placed upon judgments delivered by Hon'ble Supreme Court in the cases of Meenakshi Ammal & Ors. Vs. Manimekalai & Anr., 1997 (6) Scale (SP) 2; Rameshwari Devi Vs. State of Bihar and Ors., (2000) 2 Supreme Court Cases 431; Badri Prasad Vs. Dy. Director of Consolidation, 1 (1978) 2 SCC 527; Revanasiddappa and another Vs. Mallikarjun and Others, (2011) 11 Supreme Court Cases 1; Vidyadhari & Ors. Vs. Sukhrana & Ors. 2008 (1) Scale 580.

16. The court has heard the arguments advanced by the ld. counsel for the parties and perused the record.

17. It is no longer res integra that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary proceedings, the Court may nevertheless grant a certificate to a person if he appears to be the person having prima facie the best title thereto. Thus U/s. 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided by a regular civil court.

In the case of Madhvi Amma Bhawani Amma and others, Appellants Vs. Kunjikutty Pillai Meenakshi Pillai and others, Respondents. AIR 2000 Supreme Court 2301=2000 AIR SCW 2432 it was held that "sub□sec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

18. The court is of the considered opinion that there is prima facie material on record in the nature of copy of application under Order 1 Rule 10, filed by Smt. Premwati, mother of deceased, Ex. RW□ 1/1, order dated 09.07.2003 passed by the court of Tehsildar in mutation proceedings, Ex. RW□/2, Parivar register, Ex. RW□/7, application and declaration form dated 06.05.2002, Mark A, letter issued by M/s. United India Insurance Co. Ltd. dated 09.08.2002 wherein respondent no. 1 was acknowledged as a nominee, Mark B to establish that the deceased treated respondent no. 1 to be his wife and respondents no. 2 and 3 to be his sons.

19. There is no impediment for the grant of Succession Certificate in favour of both the petitioners Smt. Veena Solanki and Miss Eti Solanki and also in favour of respondents no. 2 and 3 viz. Master Surya Pratap Singh and Master Shri Dev Singh qua the service benefits of the deceased namely Sh. Sukhender Pal Singh Solanki. Accordingly, a Succession Certificate be issued in favour of both the petitioners Smt. Veena Solanki and Miss Eti Solanki and also in favour of respondents no. 2 and 3 viz. Master Surya Pratap Singh and Master Shri Dev Singh to the extent of 1/4th share each qua the service benefits of the deceased namely Sh. Sukhender Pal Singh Solanki including amount lying in GPF account no. DLI/CUS/2702 lying with Pay & Accounts Officer, New Custom House, IGI Airport, New Delhi, on filing of requisite proportionate court fee and on furnishing an Indemnity Bond with one surety within 15 days.

No further orders are required to be passed in the matter. File be consigned to Record Room.

Announced in the open court
on 23.05.2014

(SANDEEP GARG)
Administrative Civil Judge-Cum-
Additional Rent Controller (Central)
Delhi

23.05.2014

Present : Sh. S.S. Jauhar, Ld. counsel for both the petitioners with
petitioner no. 2 in person.

Sh. F.S. Chauhan, Ld. counsel for objector, Ms. Karuna Singh Solanki with objector, Ms. Karuna Singh Solanki in person.

Additional written arguments filed on behalf of objector. Copy supplied to Ld. counsel for petitioner. Final arguments heard.

Vide separate judgment announced in the open court today, the court holds that there is no impediment for grant of Succession Certificate in favour of both the petitioners Smt. Veena Solanki and Miss Eti Solanki and also in favour of respondents no. 2 and 3 viz. Master Surya Pratap Singh and Master Shri Dev Singh qua the service benefits of the deceased namely Sh. Sukhender Pal Singh Solanki. Accordingly, a Succession Certificate be issued in favour of both the petitioners Smt. Veena

Solanki and Miss Eti Solanki and also in favour of respondents no. 2 and 3 viz. Master Surya Pratap Singh and Master Shri Dev Singh to the extent of 1/4th share each qua the service benefits of the deceased namely Sh. Sukhender Pal Singh Solanki including amount lying in GPF account no. DLI/CUS/2702 lying with Pay & Accounts Officer, New Custom House, IGI Airport, New Delhi, on filing of requisite proportionate court fee and on furnishing an Indemnity Bond with one surety within 15 days.

No further orders are required to be passed in the matter. File be consigned to Record Room.

(Sandeep Garg) ACJ Cum ARC (Central)/Delhi 23.05.2014